

Rom Bar-Nissim (SBN: 293356)

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Attorneys for Plaintiff
ETHAN KLEIN

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF ORANGE

ETHAN KLEIN, an individual,
Plaintiff,

v.

NOAH SAMSEN, an individual; and
SAMSEN CREATIVE LLC, a California
Limited Liability Company.

Defendants

Case No.: 30-2026-01553698-CU-DF-CJC

COMPLAINT FOR DEFAMATION

JURY TRIAL DEMANDED

Assigned for All Purposes

Judge Lee Gabriel

INTRODUCTION

1. Defendant Noah Samsen (“Samsen”) advocates that the only solution to the genocide of Palestinians is the genocide of Israelis – even if they vocally support the Palestinian cause. Through his entity, Samsen Creative LLC (“Samsen Creative”), Samsen published a video on YouTube entitled *The YouTubers Who Backed a Genocide* (the “Defamatory Video”). The thumbnail for the Defamatory Video depicted various individuals, including Plaintiff Ethan Klein (“Ethan”). Samsen knew that Ethan vociferously advocated against the genocide of Palestinians. Despite this, Samsen and Samsen Creative (collectively, “Defendants”) published the Defamatory Video to falsely paint Ethan as supporting the genocide of Palestinians. Defendants’ Defamatory Video was incredibly successful. To date, it has received approximately 1.5 million views and is Defendants’ second most viewed video on YouTube.

2. Ethan (and his wife Hila Klein (“Hila”)) are passionate advocates of the right of Palestinians to self-determination and the establishment of a Palestinian state. They are vehement critics of the Israeli government and Prime Minister Benjamin “Bibi” Netanyahu. Both before and after October 7th, Ethan and Hila condemned Israel’s oppression and violence towards the Palestinian people – including explicitly stating Israel’s actions constituted genocide.

3. Ethan and Hila advocate for a two-state solution to resolve the conflict. Both Ethan and Hila are Israelis – Ethan by naturalization and Hila by birth. Nearly all of Hila’s family reside in Israel. Hila and her family are also Mizrahi Jews (*i.e.*, Jews from Arab and Muslim countries) who came to Israel as refugees escaping violence and oppression. Both Ethan and Hila know that, if Jews were to be expelled from Israel, the vast majority would have nowhere to go. This is the primary reason they advocate for a two-state solution instead of a one-state solution.

4. Samsen makes his position on the Israel-Palestine conflict unequivocally clear: Israel must be wiped off the face of the Earth. He advocates that anyone who supports the existence of Israel is a valid target. He is an adamant believer of “there are no bad means only bad targets.” As such, he engages in the very behavior and rhetoric he purportedly condemns to paint his targets as evil.

5. Samsen knows that Ethan has condemned Israel’s actions as a genocide. He simply

1 does not care about this fact. Samsen brands Ethan a genocide supporter because he does not
2 advocate for the complete destruction of Israel and Israelis.

3 6. Defendants' Defamatory Video seeks to prove as a factual matter that Ethan
4 advocates for the genocide of Palestinians. It achieves its objective by (1) misrepresenting source
5 materials; (2) relying on clearly biased sources – some of which have also spread falsehoods
6 about Ethan; and (3) through other defamatory statements about Ethan.

7 7. This lawsuit seeks to prove that advocacy for the Palestinian cause does not
8 require falsely branding advocates of a two-state solution as sanctioning genocide. To the
9 contrary, doing so impedes the Palestinian cause because it is engaging in the very behavior these
10 so-called advocates purport to condemn. This is exactly what Samsen did and why Defendants
11 must be held accountable for falsely asserting that Ethan advocates the genocide of Palestinians –
12 despite knowing that this statement is false.

13 **THE PARTIES**

14 8. Plaintiff Ethan Klein is a citizen of the State of California who resides and is
15 domiciled in Los Angeles County, California.

16 9. Defendant Samsen Creative LLC is a California limited liability company. Samsen
17 Creative is the entity through which Noah Samsen publishes his videos on YouTube. According
18 to the California Secretary of State's website, Samsen Creative has the same principal address and
19 mailing address – which is in [REDACTED] in Orange County. The California Secretary
20 of State's website also states that the designated agent of Samsen Creative is Noah Samsen. The
21 address provided for Noah Samsen is identical to the principal address and mailing address of
22 Samsen Creative.

23 10. Defendant Noah Samsen's principal place of business is Samsen Creative, which
24 is located in Orange County, California. Upon information and belief, the address provided for
25 Samsen Creative is also Samsen's primary residence and, therefore, he is domiciled in Orange
26 County, California.

27 **JURISDICTION AND VENUE**

28 11. This Court has subject-matter jurisdiction over the case under Article VI, Sections

1 and 10 of the California Constitution.

12. This Court has personal jurisdiction over Defendants pursuant to the U.S. Constitution and California's long-arm statute, California Code of Civil Procedure § 410.10, which extends jurisdiction to the full extent permissible under the Due Process Clause of the U.S. Constitution, because Defendants: (1) reside and are domiciled or are incorporated in California, (2) do business in California, (3) published the defamatory statements giving rise to the action in California, and/or (4) caused, and continue to cause, harm to Ethan in California.

13. Venue is proper in Orange County, California pursuant to California Code of Civil Procedure § 396(a) because Defendants reside and/or have their principal place of business in Orange County and published the defamatory statements that injured Ethan from Orange County.

FACTUAL ALLEGATIONS

Background of Ethan Klein

14. Ethan – along with his wife Hila – are amongst the most recognized YouTube content creators. Through their entity, Ted Entertainment, Inc. ("TEI"), they own various YouTube channels, including: (1) h3h3Productions with over 5.5 million subscribers; (2) the H3 Podcast with over 2.5 million subscribers; (3) Hila Klein f/k/a Ethan and Hila with over 1.7 million subscribers; and (4) H3 Podcast Highlights with nearly 1.5 million subscribers. They also own the streetwear fashion company, Teddy Fresh, Inc.

15. Ethan and Hila first met in Israel nearly 20 years ago. After meeting, Ethan decided to move to Israel to be with Hila. As a result, Ethan became a naturalized citizen of Israel. Hila was born in Israel and a large portion of her immediate and extended family live in Israel.

16. A few years after getting married, Ethan and Hila moved to the United States. They have been outspoken supporters of the cause for Palestinian self-determination and statehood. They are also vociferous critics of the State of Israel – even before October 7th. Noteworthy examples include:

a. On November 11, 2017, Ethan conducted an interview with Hila. During the interview, they engaged in a nuanced conversation about the Israel-Palestine conflict

1 and expressed strong criticism of the Israeli government and the Israel Defense Forces
2 (“IDF”). Hila also discussed how much she detested serving in the IDF where she served
3 as a secretary.¹

4 b. On December 8, 2020, Ethan conducted a conversation with his co-host at
5 the time, Trisha Paytas, about the Israel-Palestine conflict. He explained to Paytas why
6 she should not be dismissive of the “Free Palestine” movement and understand the
7 Palestinian perspective of the conflict – even referring to Israel’s actions against the
8 Palestinian people as a “genocide” and “apartheid.”²

9 c. On May 15, 2021, Ethan made an Instagram post condemning Israel and
10 Benjamin Netanyahu – which was liked by Hila because she agreed with it.³ This
11 occurred during the Unity Intifada that took place from May 10, 2021 through May 21,
12 2021.⁴ The post was made specifically in response to the IDF destroying the al-Jalaa
13 building – which housed Al-Jazeera and the Associated Press.⁵

14 d. On October 9, 2023 (two days after October 7th), Ethan, Hila and the crew
15 of the H3 Podcast discussed how innocent Palestinians would suffer from Israel’s reaction
16 to October 7th because the “Israel government is barbaric, genocidal freaks” and
17 “genocidal war criminals” amongst other criticisms.⁶

18 e. On October 12, 2023, Ethan conducted a near four-hour conversation about
19 the conflict where he described Israel’s actions against the Palestinians as a “genocide,”
20 openly wept recalling the image of a Palestinian father holding his dead infant child and
21 called Benjamin Netanyahu a “war criminal” amongst many other statements showing
22

23 ¹ H3 Podcast, *H3 Podcast #38 – Hila Klein* (Nov. 11, 2017), available at:
24 https://youtu.be/cTBnDJ77kr0?si=9e13E_Hap-2Y1HwX&t=1117 (from 18:37-29:15).

25 ² H3 Podcast, *Trish Was Kidnapped at Gunpoint – Frenemies #12* (Dec. 8, 2020), available at:
26 https://youtu.be/hBOsrbiA1XM?si=3Ghgyon3D_jzE0oV (from 19:05-23:55).

27 ³ <https://www.instagram.com/p/CO6TiJ9jVZG/?igsh=MWthMWI5OTF6OXNuNA==>

28 ⁴ Wikipedia, “2021 Israel-Palestine crisis,” available at:

https://en.wikipedia.org/wiki/2021_Israel%E2%80%93Palestine_crisis

⁵ Wikipedia, “Destruction of the al-Jalaa building,” available at:

https://en.wikipedia.org/wiki/Destruction_of_the_al-Jalaa_building

⁶ H3 Podcast, *i made a mistake. i’m sorry. – H3TV #93* (October 9, 2023), at 2:03:40-2:03:58,
2:05:14-2:05:20, 3:35:56-3:36:17, available at:

<https://www.youtube.com/live/ZNFerPMOu8g?si=4jE4j8SsuGKouiPL>

1 support and empathy for the Palestinian people.⁷

2 f. On November 20, 2023, Ethan and the crew of the H3 Podcast discussed
3 their hope of seeing a ceasefire and an end to the atrocities in Gaza.⁸

4 g. On March 2, 2024, Ethan reiterated that he considers Israel's treatment of
5 the Palestinians to be an "apartheid" and "genocide."⁹

6 h. On November 25, 2024, Ethan had an hour and half conversation with the
7 Arab online content creator, LonerBox, about the history of the Israeli Arab conflict.¹⁰

8 i. On May 23, 2025, Ethan had an hour-long conversation with the
9 Palestinian activist and scholar Ahmed Fouad Alkhatib about pragmatic solutions to the
10 conflict.¹¹

11 17. Ethan and Hila have also made numerous donations to Palestinian focused
12 charities:

13 a. On October 16, 2023, Ethan and Hila donated \$6,500 to a fundraiser for the
14 charitable organizations called ANERA, Palestinian Children's Relief Fund,
15 Palestine Red Crescent Society and Medical Aid for Palestinians.¹²

16 b. On May 17, 2025, Ethan and Hila donated \$1,250 to a fundraiser for the
17 charitable organization called Palestine Children Relief Fund.¹³

18 ⁷ H3 Podcast, *Israel vs. Gaza – Leftovers #61* (Oct. 12, 2023), available at:
19 https://www.youtube.com/live/JFznOHunD_c?si=7SPyIerko96VfxwL

20 ⁸ H3 Podcast, *Colleen Returns To YouTube, Pokimane Cookie Controversy – H3TV #99* (Nov. 20,
21 2023), available at: <https://www.youtube.com/watch?v=npYrseihU8E&t=1700s> (from 28:20-
22 37:10)

23 ⁹ H3 Podcast, *Jay Shetty Exposed By Ex-Girlfriend & He Lied About Being A Monk – After Dark*
24 *#139* (March 2, 2024), at 2:24:16-2:24:31, available at:
25 <https://www.youtube.com/live/5XrPXgcKwVc?si=893H-4SIKBG46jLD>

26 ¹⁰ H3 Podcast, *I Haven't Been Well – H3 Show #85* (Nov. 25, 2024), available at:
27 <https://www.youtube.com/watch?v=Yg8EL-sNp68&t=8520s> (from 2:22:00-3:15:06).

28 ¹¹ H3 Podcast, *It's Time For Me To Listen... - H3 Show #151* (May 23, 2025), available at:
<https://www.youtube.com/watch?v=cjPQCcbe-WI&t=8790s> (from 2:26:30-3:37:03)

¹² HasanAbi VODs, *HasanAbi October 16, 2023 – Israel Palestine Day 9* (October 17, 2023 –
originally broadcast on October 16, 2023), available at:
<https://www.youtube.com/watch?v=3u9QHCileOo&t=15364s> (beginning at 4:16:04); Tiltify,
Palestinian Medical Assistance, available at: <https://tiltify.com/@hasanabi/palestinian-medical-assistance>

¹³ Starkilla, *24 HOUR STREAM!~ Fundraising for Palestinian children's relief fund! (Part 1)*
(May 17, 2025), available at:
<https://www.youtube.com/live/sYAo2basV44?si=VzCpCIpbUw2td6Rh&t=11393> (beginning at
3:09:53)

c. On May 23, 2025, Ethan and Hila donated \$1,000 to The World Food Program's Gaza fund and \$1,000 to Realign for Palestine.¹⁴

d. On September 28, 2025, Ethan and Hila donated \$1,000 to a fundraiser for the Palestine Children Relief Fund.¹⁵

18. Critically, on January 31, 2025, Ethan and Hila – through their production company TEI – released a feature length documentary entitled *Content Nuke: Hasan Piker* (“*The Nuke*”). *The Nuke* documented how the prominent political streamer, Hasan Piker, repeatedly supported terrorist organizations, namely Ansar Allah a/k/a the Houthis, Hezbollah and Hamas. During *The Nuke*, Ethan repeated and emphasized his condemnation of Israel's treatment of the Palestinians.¹⁶

Noah Samsen and Samsen Creative

19. Samsen publishes videos on YouTube through his entity Samsen Creative. Throughout his career, he has produced video essays on various social topics. In these video essays, he frequently attempts to prove his thesis by citing various materials.

20. Prior to October 7th, Samsen never made a video about the Israel-Palestine conflict. Rather, he made videos about online drama – along with attacking conservatives and “anti-woke content.” After October 7th, Samsen suddenly became a self-styled expert in the Israel-Palestine conflict. Throughout his online career, Samsen has a notorious reputation for sloppy research, misrepresenting his sources and making false statements.¹⁷

21. Despite claiming to support women and people of color (including Palestinians),

¹⁴ H3 Podcast, *It's Time For Me To Listen... - H3 Show #151* (May 23, 2025), available at: <https://www.youtube.com/live/cjPQCcbc-WI?t=13130s> (beginning at 3:38:51).

¹⁵ Alex the Fiction, *H3 Fans For Palestine 12 HOUR FUNDRAISER STREAM* (September 28, 2025), available at: <https://www.youtube.com/live/wqgNByS7bPc?t=21462s> (beginning from 5:57:42)

¹⁶ h3h3Productions, *Content Nuke – Hasan Piker* (Jan. 31, 2025), available at: https://youtu.be/ZSUDHx-1_ww?si=aVDdZReXFZ9Ha8qp (from 17:06-18:01).

¹⁷ Rob's Media, *Idiot Influencers – Noah Samsen* (December 4, 2023), available at: <https://youtu.be/aetS8A2sC9c?si=9b7v1OAD-amKdPkA>; Rob's Media, *The Downfall of BreadTube* (November 8, 2025), available at: <https://www.youtube.com/watch?v=ULnJ3bDtheM&t=3567s> (from 59:27 through 1:15:00); Rob's Media, *Responding to Noah Samsen* (October 20, 2024), available at: https://youtu.be/27_JK8mM4IU?si=KmYXoIym0aSZBhYd; Rob's Media, *Why I Hate BreadTubers* (August 30, 2024), available at: <https://youtu.be/l-Kiwc5ZTaI?si=qHpFJcnARPJTGatm>

the disingenuousness of Samsen’s “advocacy” comes through when he ruthlessly attacks women and people of color who do not share his opinions. Below are some notable examples:

- a. Samsen is notorious for his attack on Patience Xina – a black, female creator who resides in the United Kingdom. She makes videos with nuanced commentary on various social topics, including race and gender issues. During the public controversy of Halle Bailey being cast as Ariel in *The Little Mermaid*, Patience Xina agreed with the criticism because she felt Hollywood was shoehorning people of color into Caucasian stories. Her solution was that Hollywood should focus on creating more content that focuses on stories directly involving people of color. Samsen attacked Patience Xina for her opinion and not rubber-stamping Halle Bailey’s casting. Patience Xina made a video exposing Samsen’s hypocrisy.¹⁸
- b. Samsen has also attacked Palestinians who do not give full throated support to Hamas and the destruction of Israel. Ahmed Fouad Alkhatib (discussed above) is a Gazan refugee. He is senior fellow of the Atlantic Council where he leads the nonprofit organization called Realign For Palestine. He is an advocate of non-violence and of the two-state solution to resolve the conflict between Israel and Palestine.¹⁹ Samsen attacked Alkhatib by calling him a “pro Israel genocide collaborator” that “lies for money to help Israel genocide his people.”²⁰

The Defamatory Video

22. On March 11, 2025, Defendants published a video entitled *The YouTubers Who*

¹⁸ Patience Xina, *This Is Why I Don’t Trust ‘Allies’* (November 14, 2022), available at: https://youtu.be/hlbgaciki9w?si=z0hFC-5BT_xDwjIP

¹⁹ Wikipedia, “Ahmed Fouad Alkhatib” available at: https://en.wikipedia.org/wiki/Ahmed_Fouad_Alkhatib; Realign For Palestine, Leadership “Ahmed Fouad Alkhatib” available at: <https://realignforpalestine.org/leadership/ahmed-fouad-alkhatib>; Atlantic Council, “Ahmed F. Alkhatib” available at: <https://www.atlanticcouncil.org/expert/ahmed-alkhatib/>

²⁰ December 10, 2025 post by Samsen on X available at: <https://x.com/noahsamsen/status/1998899204954243515>; December 10, 2025 post by Samsen on X available at: <https://x.com/noahsamsen/status/1998896749516304401>

1 *Backed a Genocide* (i.e., the Defamatory Video).²¹ The defamatory statements contained in the
2 Defamatory Video are identified below.

3 **The Defamatory Statements**

4 23. The first defamatory statement is comprised of the thumbnail and title of the
5 Defamatory Video (i.e., *The YouTubers Who Backed a Genocide*) (the “First Defamatory
6 Statement”). The thumbnail for the Defamatory Video initially depicted four online content
7 creators: (1) Ethan; (2) Mutahar Annas p/k/a SomeOrdinaryGamer (“Annas”); (3) Turkey Tom;
8 and (4) Steven Bonnell Jr. p/k/a Destiny. The background of the thumbnail was the devastated
9 landscape of the Gaza Strip with a photoshopped Israeli flag. The thumbnail depicted Ethan
10 performing a Nazi salute to the Israeli flag. Sometime after its release, the content creator
11 LonerBox (discussed above) heavily criticized Samsen’s poor research and misrepresentations in
12 the Defamatory Video. Out of retaliation, Samsen changed the thumbnail of the Defamatory
13 Video to include an image of LonerBox – despite LonerBox not appearing in the video at all. A
14 true and correct screenshot of the thumbnail and title for the Defamatory Video is depicted below:



24 24. The second defamatory statement is Samsen’s false factual assertion that: “Ethan
25 spreads atrocity propaganda. He shares the Hamas mass rapes hoax – the same hoax that was used
26 by the Western media, the US government and the Israeli government to justify genocide.” (the
27 “Second Defamatory Statement”). Defamatory Video at 43:15-43:32.

28 ²¹ Noah Samsen, *The YouTubers Who Backed a Genocide* (March 11, 2025), available at:
<https://youtu.be/SsPCxoln6fQ?si=r33VCzMlgsQOBGX>.

1 25. The third defamatory statement is Samsen’s false factual assertion that: “Ethan
2 spreads overt misinformation. Just straight up lies about Hezbollah and Ansar Allah (or the
3 Houthis) in order to delegitimize their struggle against Israel’s genocide. He cites baseless claims
4 from Saudi state propaganda outlets to attack the Houthis. He also cites a documentary about
5 Ansar Allah, which he uses as proof of the claim that they brought back slavery when the
6 documentary wasn’t even about the Houthis; it was about the Yemeni government before the
7 Houthi takeover.” (the “Third Defamatory Statement”). Defamatory Video at 43:56-44:23.

8 26. The fourth defamatory statement is Samsen’s false factual assertion that: “He [*i.e.*,
9 Ethan] spreads long debunked Nakba denialist talking points. Talking points that have been used
10 for decades to legitimize Israeli colonization of Palestine.” (the “Fourth Defamatory Statement”).
11 Defamatory Video at 44:22-44:29.

12 27. The fifth defamatory statement is Samsen’s false factual assertions that: “Ethan
13 cites sources that contradict his own claims directly, such as the UN report he claims proves the
14 Hamas mass rapes allegation – which the report itself denies.” (the “Fifth Defamatory
15 Statement”). Defamatory Video at 44:30-44:41.

16 28. The sixth defamatory statement is Samsen’s false factual assertion that “He [*i.e.*,
17 Ethan] spends 20 minutes in the video smearing a 19-year-old survivor of the US-backed Saudi
18 genocide in Yemen as a terrorist with zero credible evidence.” (the “Sixth Defamatory
19 Statement”). Defamatory Video 44:41-44:50.

20 29. Samsen intended for his statements to be assertions of fact. First, Samsen holds
21 himself out as an expert in the Israel-Palestine conflict. Second, to buttress his imprimatur of
22 authority on the subject, Samsen will inundate his audience with a kaleidoscope of citations –
23 most of which he misrepresents or are wholly unreliable. This is done intentionally so Samsen
24 can exploit his audience’s low level of knowledge on the subject matter because he knows they
25 will not research his citations on their own. Third, Samsen’s tone is serious and earnest – which is
26 reflected in the language he employs. These are some of the reasons why Samsen intended (and
27 his audience perceived) the defamatory statements as assertions of fact.

28 ///

The First Defamatory Statement

30. As mentioned, the First Defamatory Statement is comprised of the thumbnail of the Defamatory Video and its title.

31. The First Defamatory Statement is subject to being proven true or false:

- a. Merriam-Webster Dictionary defines the verb “to back” as “to support by material or moral assistance”;²²
- b. The term genocide is crime that is defined under the Convention on the Prevention and Punishment, Article III as “any of the following acts committed with intent to destroy, in whole or in part, a national, ethnic, racial or religious group, as such: (a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; (d) imposing measures intended to prevent births within the group; or (e) forcibly transferring children of the group to another group.”
- c. Whether Ethan provided material or moral support to genocidal acts by Israel is subject to being proven true or false.

32. As demonstrated in Paragraphs 16-18, Ethan does not and has not supported Israel’s genocide of the Palestinian people whatsoever. To the contrary, he has expressly stated the opposite and supported numerous charities dedicated to helping Palestinians.

33. Samsen knew the First Defamatory Statement was false. Samsen cites *The Nuke* in the Defamatory Video and includes clips from it. In *The Nuke*, Ethan expresses his repeated condemnation of Israel’s treatment of the Palestinians. *See* Fn. 16.

34. Samsen engaged in similar conduct (*i.e.*, expressly misrepresenting the contents of videos) to falsely assert that Annas and Turkey Tom supported Israel’s genocide of the Palestinian people as explained below.

- a. The Defamatory Video shows two brief clips of Annas’ October 21, 2024

²² Merriam-Webster, “Back,” available at: <https://www.merriam-webster.com/dictionary/back>

1 video entitled *Twitch Is A Disgustingly Evil Platform* (the “Annas Video”).²³ Defamatory
2 Video at 48:08-48:21 & 49:30. In the Annas Video, Annas expressly states: “I’m not
3 somebody that is afraid to say that genocide is wrong. I think there is an actual case of,
4 you know, genocide and there’s an actual case of attack that goes towards the Palestinian
5 people.” Annas Video at 29:41-30:01. Annas made similar statements throughout the
6 Annas Video (*id.* at 3:09-3:34, 9:01-9:17) and in other videos.²⁴ Despite expressly calling
7 Israel’s actions against the Palestinian people in Gaza a genocide and condemning those
8 actions, Samsen labeled Annas – who is Muslim – a supporter of Israel’s genocide of the
9 Palestinian people.

10 b. The Defamatory Video shows a brief clip of Turkey Tom’s October 19,
11 2024 video entitled *Hasan Has Hit a New Low...* (the “Turkey Tom Video”).²⁵
12 Defamatory Video 47:59-48:03. In the video, Turkey Tom expressly states: “Obviously,
13 the Israeli Palestine conflict is very complicated and I’m not trying to say, like, Israel
14 good or Palestine good or Palestine bad or Israel bad. Like, that’s not my take here. I just
15 think that, like, you know, civilians dying is, like, sad and unfortunate and I don’t like
16 that. You know, civilians aren’t the government. They’re not militants. They’re not
17 soldiers. They’re just living somewhere where they were born and grew up. So, obviously,
18 you know, I’m going to feel bad for them if they die.” Turkey Tom Video at 11:23-11:48.
19 Despite expressly stating his sympathy for Palestinian civilians losing their lives, Samsen
20 labeled Turkey Tom a supporter of Israel’s genocide of the Palestinian people.

21 35. The First Defamatory Statement also falsely portrayed LonerBox – who is
22 Lebanese – as supporting Israel’s genocide of the Palestinian people. After LonerBox criticized
23 Samsen’s sloppy research, repeated misrepresentations of sources and overt misinformation in the
24 Defamatory Video, Samsen retaliated by including LonerBox in the thumbnail for the

25 ²³ SomeOrdinaryGamer, *Twitch Is A Disturbingly Evil Platform...* (Oct. 21, 2024), available at:
26 <https://youtu.be/Arf3onMjCEE?si=kIqsUUyfu49ZfDiu>

27 ²⁴ Some Ordinary Clips, *SomeOrdinaryGamer – Muta talks about the Asmongold controversy*
(Oct. 18, 2024), available at: <https://youtu.be/2iyig7mjY6w?si=MyhM5wNIWYyPX4Y4> (from
0:41-3:00).

28 ²⁵ TomDark, *Hasan Has Hit a New Low...* (Oct. 19, 2024), available at:
https://youtu.be/H0OLi0u6eqg?si=PtSAxU5_B7Rdbz-y

1 Defamatory Video.

2 36. Samsen also expressed his desire to falsely paint Ethan as supporting the genocide
3 of Palestinians for clout and financial reasons. In the Defamatory Video, Samsen states: “I think
4 many of you can probably also help out with that [because] most of you have smartphones and
5 cameras and TikTok. So, go ahead, start posting about it. Spread the word. Aside from being a
6 morally good thing to do, it’s also becoming sustainable, you know. It’s algorithmically viable.
7 The Ethan Klein crash out industrial complex is booming.” Defamatory Video 1:00:36-1:00:56.

8 37. Samsen’s statement that it was “algorithmically viable” to falsely state that Ethan
9 supported the genocide of Palestinians was correct. To date, the Defamatory Video is Samsen’s
10 second most viewed video with nearly 1.5 million views. In contrast, the video he made after the
11 Defamatory Video entitled *Manufacturing Consent for Genocide* received approximately 154,000
12 views (*i.e.*, 10% of what the Defamatory Video received).²⁶

13 38. In a video Defendants published on May 15, 2025, Samsen admitted that he
14 included Ethan in the thumbnail so the Defamatory Video would garner more views.²⁷

15 39. Further, Samsen used the Second through Sixth Defamatory Statement to support
16 his false factual assertion that Ethan supported a genocide – each of which are discussed below.

17 **The Second and Fifth Defamatory Statements**

18 40. Both the Second and Fifth Defamatory Statements falsely assert that Ethan spread
19 the “ Hamas mass rapes hoax” or “ Hamas mass rapes allegation.”

20 41. To support these assertions, Samsen falsely asserts that Ethan misrepresented the
21 contents of the March 4, 2024 report from the United Nations’ Office of the Special
22 Representative of the Secretary-General on Sexual Violence in Conflict entitled “Mission Report:
23 Official visit of the Office of the SRSG-SVC to Israel and the occupied West Bank 29 January –
24 14 February 2024.” (the “UN Report”).²⁸ Paragraphs 84 through 86 of the UN Report refute

25 ²⁶ Noah Samsen, *Manufacturing Consent for Genocide* (March 17, 2025), available at:
<https://www.youtube.com/watch?v=HB5axZSauBM>

26 ²⁷ Noah Samsen, *Ethan Klein Lawsuit Response* (May 15, 2025), available at:
<https://youtu.be/YWSHZouzaIM?si=s1AM6CIEKbNrIhAC> (from 15:45-16:23).

27 ²⁸ United Nations’ Office of the Special Representative of the Secretary-General on Sexual
28 Violence in Conflict, “Mission Report: Official visit of the Office of the SRSG-SVC to Israel and
the occupied West Bank 29 January – 14 February 2024” (March 4, 2024), available at:
(continued).

1 Samsen's false assertion and are set forth below:

- 2 a. Paragraph 84 of the UN Report states: "Overall, based on the totality of
3 information gathered from multiple and independent sources at the different
4 locations, there are reasonable grounds to believe that conflict related sexual
5 violence occurred at several locations across the Gaza periphery, including in
6 the form of rape and gang rape, during the 7 October 2023 attacks. Credible
7 circumstantial information, which may be indicative of some forms of sexual
8 violence, including genital mutilation, sexualized torture, or cruel, inhuman
9 and degrading treatment, was also gathered."
- 10 b. Paragraph 85 of the UN Report states: "With regard to the hostages, the
11 mission team found clear and convincing information that some hostages taken
12 to Gaza have been subjected to various forms of conflict-related violence and
13 has reasonable grounds to believe that such violence is ongoing."
- 14 c. Paragraph 86 of the UN Report states: "The mission team was unable to
15 establish the prevalence of sexual violence and concludes the overall
16 magnitude, scope, and specific attribution of these violations would require a
17 fully-fledged investigation. A comprehensive investigation would enable the
18 information base to be expanded in locations which the mission team was not
19 able to visit and to build the required trust with survivors/victims of conflict-
20 related sexual violence who may be reluctant to come forward at this point."

21 42. The aforementioned paragraphs make clear that there were numerous instances of
22 sexual violence perpetrated by Hamas against Israelis at several locations on October 7th. This is
23 not in dispute. Rather, further investigation was necessary to determine the "overall magnitude,
24 scope and specific attribution" of these numerous acts of sexual violence.

25 43. Samsen expressly misrepresented the contents of the UN Report to knowingly and
26 intentionally paint Ethan as lying about Hamas engaging in numerous acts of sexual violence on
27 October 7th.

28 [https://news.un.org/en/sites/news.un.org/en/files/atoms/files/Mission_report_of_SRSG_SVC_to_I
srael-oWB 29Jan 14 feb 2024.pdf](https://news.un.org/en/sites/news.un.org/en/files/atoms/files/Mission_report_of_SRSG_SVC_to_Israel-oWB_29Jan_14_feb_2024.pdf)

1 44. Samsen knew he had to misrepresent the UN Report because of his repeated
2 lionization of Hamas as a “heroic resistance.” To acknowledge their sexual violence would
3 contradict his narrative and demonstrate he supports sexual assault.

4 45. Indeed, immediately after the Second Defamatory Statement, Samsen cites
5 materials he claims supports his assertion that the “Hamas mass rapes hoax” was “used by the
6 Western media, the US government and the Israeli government to justify genocide.” The
7 materials he cited, however, only discuss conflict related sexual violence in general (and not just
8 October 7th) and did not discuss Israel’s actions in Gaza whatsoever.²⁹

9 **The Third Defamatory Statement**

10 46. The Third Defamatory Statement falsely asserts that Ethan spread “overt
11 misinformation” and “straight up lies” about Hezbollah and Ansar Allah a/k/a the Houthis in *The*
12 *Nuke*.

13 47. In *The Nuke*, Ethan pointed out the following facts about Hezbollah: (1) it engaged
14 in terrorism resulting in the deaths of thousands of civilians; (2) it orchestrated the assassination
15 of Lebanese Prime Minister Rafik Al-Hariri; (3) it hijacked airplanes; (4) it fired 15,000 rockets
16 in civilian areas; (5) it intervened in the Syrian Civil War to aid the dictator Bashar Al-Assad,
17 which resulted in the deaths of hundreds of thousands of civilians; (6) its former leader, Hassan
18 Nasrallah, made numerous antisemitic and genocidal statements against Jews; and (7) it initiated
19 the most recent round of fighting on October 8th, not Israel, which resulted in 100 Israelis killed
20 and over 200,000 displaced. *The Nuke* at 55:44-1:01:43.

21 48. Despite asserting that Ethan spread “overt misinformation” and “straight up lies”
22 about Hezbollah, Samsen failed to identify – let alone prove – any statement Ethan made in *The*
23 *Nuke* about Hezbollah that was false. Samsen failed to do so because he knew that Ethan’s
24 statements were true.

25 49. In *The Nuke*, Ethan pointed out the following facts about the Houthis: (1) they

26 ²⁹ See The White House, “FACT SHEET: The Biden-Harris Administration’s Actions to Address
27 Conflict-Related Sexual Violence” (June 17, 2024), available at:
28 <https://bidenwhitehouse.archives.gov/briefing-room/statements-releases/2024/06/17/fact-sheet-the-biden-harris-administrations-actions-to-address-conflict-related-sexual-violence/>; Screams Before Silence, *Screams Before Silence – White House Screening* (June 20, 2024), available at: <https://youtu.be/Sr0KoYCYCI0?si=WC9FMj4N8ZNqfMIX>

1 recruit child soldiers; (2) they shell civilians; (3) they block aid to civilians; (4) they ruin
2 agricultural land with mines; (5) they oppress women and members of the LGBTQ community;
3 (6) they torture and kill women; (7) they perform Nazi salutes; (8) their flag states “Death to
4 Israel” and “Curse Upon the Jews”; (9) they captured the ship *Galaxy Leader* in international
5 waters, not Yemeni waters and the ship was not destined to or traveling from Israel; and (10) they
6 took the crew of the *Galaxy Leader* (who were not Israeli) hostage. *The Nuke* at 30:40-55:33.

7 50. Despite asserting that Ethan spread “overt misinformation” and “straight up lies”
8 about the Houthis, Samsen fails to address – let alone refute – any of the aforementioned
9 statements Ethan made about the Houthis. Samsen failed to do so because he knew that Ethan’s
10 statements were true and had no evidence to contradict those statements because none exists.

11 51. Instead, Samsen solely focused on Ethan’s assertion that the Houthis engaged in
12 slavery. Samsen does not provide evidence refuting Ethan’s assertion. Rather, Samsen tries to
13 attack the two sources cited in *The Nuke* to support the assertion the Houthis engaged in slavery:
14 (1) an article entitled “Exclusive – Houthis Restore Slavery in Yemen” from *Asharq Al-Awsat*
15 English version (the “*Asharq Al-Awsat* Article”);³⁰ and (2) the documentary by *Al-Jazeera World*
16 entitled *Slavery in Yemen* (“*Al-Jazeera* Documentary”).

17 52. Samsen makes the assertion that the *Asharq Al-Awsat* Article contains “baseless
18 claims” from “Saudi state propaganda outlets” without any supporting evidence. Samsen’s
19 conclusory assertions are false. The *Asharq Al-Awsat* Article cited receiving information from:
20 (1) sources close to the Houthis; (2) several local reports; (3) Yemeni activists; (4) lawyers in
21 Yemen; and (5) a civilian who worked for a pro-Houthi tribal leader. Further, the United States’
22 State Department cited the *Asharq Al-Awsat* Article in its *2022 Country Reports on Human*
23 *Rights Practices: Yemen* for the proposition that “The newspaper *Asharq al-Awsat* reported in
24 2019 that prominent Houthis held more than 1,800 citizens as slaves and servants who worked in
25 their residences and places of work.”³¹

26
27 ³⁰ Asharq Al-Awsat, “Exclusive – Houthis Restore Slavery in Yemen” (July 13, 2019), available
at: <https://english.aawsat.com/home/article/1810456/exclusive-houthis-restore-slavery-yemen>.

28 ³¹ U.S. Department of State, “2022 Country Reports on Human Rights Practices: Yemen,” p. 47
available at: [https://www.state.gov/wp-content/uploads/2023/03/415610_YEMEN-2022-
HUMAN-RIGHTS-REPORT.pdf](https://www.state.gov/wp-content/uploads/2023/03/415610_YEMEN-2022-HUMAN-RIGHTS-REPORT.pdf)

53. Samsen intentionally misrepresented the contents of the *Asharq Al-Awsat* Article because he knew it ran counter to his narrative of the Houthis being the “heroic resistance” and exploited the fact that he knew his audience would not read the *Asharq Al-Awsat* Article.

54. Samsen makes the assertion that Ethan misrepresented the *Al-Jazeera* Documentary because it was released before the Houthi takeover of Yemen. This is false. The *Al-Jazeera* Documentary was released on September 10, 2014.³² The Houthis controlled parts of Yemen as early as March 2011 with the Battle of Saada.³³ Additionally, the Battle of Sanaa – which cemented Houthi control over northern Yemen – began prior to the release of the *Al-Jazeera* Documentary.³⁴ Moreover, the *Al-Jazeera* Documentary focused on Yemen’s overall culture of slavery – not merely of the deposed government.

55. Indeed, the Houthi’s engagement in human trafficking is well documented. In 2023, an independent Yemeni human rights organization, Mwatana, found that the Houthis forcibly recruited African migrants and deployed them to the front lines of conflict zones then refused to pay them.³⁵ Further, *The Independent* published an article reporting on the Houthis engaging in sex trafficking, supported by statements from Yemeni victims, lawyers and human rights activists.³⁶

56. Samsen intentionally misrepresented the timeline because he knew that the Houthis engaging in slavery contradicted his assertion that they were the “heroic resistance” and he knew his audience would not take the time to watch the *Al-Jazeera* Documentary on their own.

The Fourth Defamatory Statement

57. The Fourth Defamatory Statement falsely asserts that Ethan denied the Nakba to legitimize Israeli’s colonization. Nowhere does Samsen identify: (1) what Ethan said that denied

³² Ashraf Mashharawi, *Al-Jazeera World*, *Slavery in Yemen* (Sept. 10, 2014), available at: <https://www.aljazeera.com/program/al-jazeera-world/2014/9/10/slavery-in-yemen/>

³³ Wikipedia, “Battle of Saada” available at: https://en.wikipedia.org/wiki/Battle_of_Saada

³⁴ Wikipedia, “Houthi Insurgency: 2011 Yemeni Revolution”), available at: https://en.wikipedia.org/wiki/Houthi_insurgency#2011_Yemeni_Revolution.

³⁵ Mwatana for Human Rights, *Transit from Hell* (December 2023), available at: [65a7c50c0bd846bbcd91e5b7 Transit in Hell - En .pdf](https://www.mwatana.org/en/65a7c50c0bd846bbcd91e5b7/Transit%20in%20Hell-%20En.pdf).

³⁶ Charlene Rodrigues, *The Independent*, “‘It’s for the service of the homeland’: The Houthis’ sexual violence and prostitution rings in Yemen” (July 12, 2021), available at: <https://www.independent.co.uk/independentpremium/houthis-yemen-prostitution-violence-rape-b1878927.html>

1 the Nakba; (2) how those points were debunked; and (3) how these talking points legitimize
2 Israeli colonization. Instead, Samsen shows a screenshot from a video by George Ganitis p/k/a
3 Bad Empanada (“Bad Empanada”) entitled *Nakba Denier, Expulsion Liar: ‘Content Nuke’*
4 *Destroyed #6*³⁷ (the “Bad Empanada Video”) with the text “debunked here by BadEmpanada.”

5 58. Bad Empanada has a notorious reputation for his full-throated support of violence
6 and terrorism against Israel and Israelis, particularly October 7th.³⁸ He spreads intentional
7 falsehoods and misinformation about his enemies, including harassing and doxxing them. At the
8 top of Bad Empanada’s hit list are Ethan and Hila.³⁹ Samsen is well aware of Bad Empanada’s
9 extreme antagonism towards Ethan, Israel and Israelis due to Samsen’s close friendship with Bad
10 Empanada. Indeed, it is highly likely that Bad Empanada played a substantial role in the creation
11 of the Defamatory Video.

12 59. Like Bad Empanada’s other videos, the Bad Empanada Video cited by Samsen is
13 replete with misinformation. In the Bad Empanada Video, Bad Empanada asserts that “Ethan
14 Klein attempts to justify the Israeli settler-colonial state by glossing over The Nakba.” Bad
15 Empanada Video at 0:00:06-13. Not only is this false, but Bad Empanada also fails to show any
16 clip of Ethan doing so. Rather, Bad Empanada shows Ethan discussing: (1) that Jews would not

17 ³⁷ BadEmpanada Live, *Ethan Klein DENIES Nakba, LIES About Jewish Expulsions – ‘Content*
18 *Nuke Destroyed #6* (Feb. 12, 2025), available at:

19 <https://youtu.be/T4EIQqvSmuo?si=PodQarYG1Gg5-Orf>

20 ³⁸ See e.g., Archived Tweets of BadEmpanada, available at: <https://archive.ph/2cB0T>;

21 <https://archive.ph/6nf3F>; <https://archive.ph/YLTUs>; <https://archive.ph/IrFle>;

22 <https://imgur.com/a/c2chXQQ>; [https://imgur.com/a/https-web-archive-org-web-](https://imgur.com/a/https-web-archive-org-web-20240426155813-https-twitter-com-nukedfirstworld-2zSGmYo)

23 <https://imgur.com/a/saGA4ip>;

24 <https://x.com/BoxLoner/status/1627605370284789760>; <https://imgur.com/a/VN8Hyoq>;

25 BadEmpanada Live, *Crocodile Tears for the Hostages* (February 23, 2025), available at:

26 <https://www.youtube.com/watch?v=3ltdmuVAtIc>.

27 ³⁹ See e.g., BadEmpanada Live, *Ethan Klein Denounces IDFophobia Against Wife Hila*
28 (September 24, 2024), available at: https://youtu.be/ujTU0E2RbKM?si=C34BI0g9_k7wCczV;

BadEmpanada Live, *Hila Klein’s IDF Crimes: Way Worse Than She & Ethan Now Admit*

(September 29, 2024), available at: https://youtu.be/mol6Bx9hyk8?si=jbBnqBJ_C7cvPmQ;

BadEmpanada, *Hila Klein is a Terrorist* (October 24, 2024), available at:

<https://youtu.be/ETR4cb1aMhA?si=3LaItDpCOMgleDP>; BadEmpanada, *Content Tsar Bomba –*
25 *Ethan Klein* (February 4, 2025), available at:

26 https://youtu.be/3rM76vkIQNg?si=TJzANsAOw3K_oKVf; BadEmpanada, *Ethan Klein and*

27 *Jewish Exceptionalism – The Ideology That Enables Isreal* (October 25, 2024), available at:

28 <https://youtu.be/PpzFw5VZWBE?si=h2Ks1qYT5IVK5bO4>; BadEmpanada, *Ethan and Hila*

Responded With Lies & Stupidity (October 26, 2024), available at: [https://youtu.be/1Z1REKH-](https://youtu.be/1Z1REKH-bs8?si=xpkCeh_RwOWCZp_S)

[bs8?si=xpkCeh_RwOWCZp_S](https://youtu.be/1Z1REKH-bs8?si=xpkCeh_RwOWCZp_S); BadEmpanada Live, “Ethan Klein Hasan Content Nuke Playlist”

(10 videos), available at: [https://www.youtube.com/playlist?list=PLYiKDJOJoO1S1Go-](https://www.youtube.com/playlist?list=PLYiKDJOJoO1S1Go-kPQcGXzV7wI5Q3U9K)

[kPQcGXzV7wI5Q3U9K](https://www.youtube.com/playlist?list=PLYiKDJOJoO1S1Go-kPQcGXzV7wI5Q3U9K)

1 feel safe as an ethnic minority; (2) Israel is comprised of refugees from Europe and Arab
2 countries; (3) following the 1948 War, there were more Jews displaced than Palestinians during
3 The Nakba; and (4) there are hardly any Jews left in Arab countries. *Id.* at 0:31-1:40.

4 60. None of these statements deny the Nakba or downplay it. Rather, it is a fact that
5 “approximately 900,000 Jews migrated, fled, or were expelled from Muslim-majority countries
6 throughout Africa and Asia, primarily as a consequence of the establishment of the State of
7 Israel”⁴⁰ and the Nakba “turned 700,000 Palestinians into refugees” – which was “mainly caused
8 by Israeli arms.”⁴¹

9 61. Even, worse, the Bad Empanada Video advances an ahistorical narrative about the
10 exodus of Jews from Morocco, Algeria and Iraq.

11 62. As to Morocco, Bad Empanada grossly misrepresents the historical record by
12 claiming the Jewish Agency struck an agreement with the French governor to force Moroccan
13 Jews to immigrate. Bad Empanada Video at 1:41-2:44. As explained below, this is false.

14 a. In June 1948, antisemitic riots broke out in the cities of Oujda and Jerada. A
15 significant portion of the Jewish population of both cities were slaughtered or
16 severely injured by the local Arabs. As a direct result of the riots, 28,000
17 Moroccan Jews left for Israel.⁴²

18 b. Immediately before and during Moroccan independence in 1956, 70,000

19 ⁴⁰ Wikipedia, “Jewish exodus from the Muslim world,” available at:
20 https://en.wikipedia.org/wiki/Jewish_exodus_from_the_Muslim_world; see also Maurice
21 Roumani, *The Case of the Jews from Arab Countries: A Neglected Issue* (“Roumani”), pp. 15-16,
22 (Following the 1948 Arab-Israeli war, over 800,000 Jews in the Arab and Muslim world fled their
23 homes after a dramatic rise in antisemitic violence and persecution); Malka Hille Schulewitz, *The*
24 *Forgotten Millions*, p. 133 (“Some 600,000 Jews fled Arab countries for Israel, while a further
25 260,000 found refuge in Europe and the Americas.”).

23 ⁴¹ United Nations, “UN marks 75 years since displacement of 700,000 Palestinians” (May 15,
2023), available at: <https://news.un.org/en/story/2023/05/1136662>; Benny Morris, *Righteous*
24 *Victims*, p. 685.

24 ⁴² Wikipedia, “Migration of Moroccan Jews to Israel” available at:
25 https://en.wikipedia.org/wiki/Migration_of_Moroccan_Jews_to_Israel; Wikipedia, “Operation
26 Yachin” available at: https://en.wikipedia.org/wiki/Operation_Yachin; Roumani, p. 19; Lyn
27 Julius, *Uprooted* (“Julius”), p. 60; Israel Central Bureau of Statistics, “Immigrants, by Period of
28 Immigration, Country of Birth and Last Country of Residence” (“Israel CBS Report”) (2009), p.
237, available at:
https://web.archive.org/web/20110811092357/http://www1.cbs.gov.il/shnaton60/st04_04.pdf;
MoroccanJews.org, “Data on Immigration to Israel from Morocco,” available at:
<https://moroccanjews.org/home/jewish-emigration-from-morocco/data-on-immigration-to-israel-from-morocco/>.

Moroccan Jews left due to hostility from Arab nationalism.⁴³

- c. Following Moroccan independence, an additional 130,000 Moroccan Jews left.⁴⁴
- d. Bad Empanada even misrepresents the article he cites and its citing source. In the article, it claims that the Jewish Agency had to strike an agreement with the French governor of Morocco to bring about the emigration of Moroccan Jews.⁴⁵ The source cited in the article *1949: The First Israelis* by Tom Segev does not support this assertion. Rather, the book discussed the observations of the emissary from the Jewish Agency on Moroccan Jews in Marseilles, France in July 1949 and their reluctance to leave Marseilles because of the hardship in settling in Israel and the housing situation.⁴⁶

63. As to Algeria, Bad Empanada falsely claims: (1) the Crémieux Degree granted Algerian Jews French citizenship and Algerian Jews oppressed Algerian Christians and Muslims as a result; and (2) once Algeria achieved independence, it gave an ultimatum to all French citizens (not just the Jews) to renounce their citizenship and become Algerian citizens or leave the country. Bad Empanada Video at 2:45-4:02. The statements are false and highly misleading as explained below.

- a. Algeria never offered Jews citizenship after independence. The Algerian National Code of 1963 only afforded citizenship to inhabitants who had at least two Algerian-born ascendants on their father's side that were Muslim. Rather, after independence, Algerian Jews were harassed and deprived of their economic rights.⁴⁷

⁴³ Roumani, p. 19.

⁴⁴ Israel CBS Report, p. 237.

⁴⁵ Joseph Massad, *MiddleEastEye*, "The Truth behind Israeli propaganda on the 'expulsion' of Arab Jews" (Dec. 15, 2020), available at: <https://www.middleeasteye.net/big-story/truth-behind-israeli-propaganda-expulsion-arab-jews>

⁴⁶ Tom Segev, *1949: The First Israelis* ("Segev"), pp. 167, 328 fn. 63; Roumani, pp. 51-52.

⁴⁷ Jewish Virtual Library, "Jews of Algeria," available at: <https://www.jewishvirtuallibrary.org/jews-of-algeria>; The Asylumist: Asylum and its Discontents in the United States, "Remembering Algeria's Jewish Refugees – 50 Years Later"; Wikipedia, "National Liberation Front (Algeria): Relationship with Jewish Algerians," available at: [https://en.wikipedia.org/wiki/National_Liberation_Front_\(Algeria\)#Relationship_with_Jewish_A](https://en.wikipedia.org/wiki/National_Liberation_Front_(Algeria)#Relationship_with_Jewish_A) (continued).

- 1 b. The 1870 Cremieux Degree offered all Algerians (irrespective of religion)
2 French citizenship. Algerian Muslims rejected the offer because they would be
3 subject to French civil law.⁴⁸ Algerian Jews accepted citizenship due – in large
4 part – to the massacre of Jews in Algiers in 1805, 1815 and 1830.⁴⁹ Nor were
5 Jews a favored class amongst the French. To the contrary, there was rampant
6 antisemitism in mainland France as demonstrated by: (1) the Dreyfus Affair;
7 (2) French authorities failing to prevent the 1934 Pogrom of Constantine; and
8 (3) stripping Jews of citizenship in 1940 and barring them from any form of
9 public service.⁵⁰
- 10 c. Bad Empanada also ignores other factors that led to Algerian Jews leaving
11 Algeria, namely: (1) from 1956-1958, the FLN targeted Jews and Jewish
12 institutions on approximately ninety separate occasions during the Algerian
13 War of Independence (despite some Jews joining and supporting the FLN and
14 Algerian independence); and (2) after the Six-Day War in 1967, the numerous
15 antisemitic riots occurring throughout Algeria.⁵¹

16 64. As to Iraq, Bad Empanada falsely and misleadingly asserts that: (1) Iraq
17 desperately tried to keep its Jews and passed laws preventing them from leaving; and (2) the
18 Zionists committed terrorist attacks to poison the relationship between Iraqi Arabs and Jews to
19 motivate Iraqi Jews to leave and pressure the Iraqi government to rescind the emigration ban. Bad
20 Empanada Video at 4:03-5:00. These claims are debunked below.

- 21 a. The bombing campaign referred to in the Bad Empanada Video occurred from
22 April 1950 through June 1951. In March 1950 (*i.e.*, before the bombings), the
23 Iraqi government authorized the emigration of Iraqi Jews to Israel on condition

24 Algerians; Ya'akov Meron, *The Forgotten Millions*, p. 93; UNHCR, *Alegria: Nationality Code*
(2005), available at: <https://www.refworld.org/legal/legislation/natlegbod/2005/fr/121663>.

25 ⁴⁸ Anver Ofrath, "We Shall Become French": *Reconsidering Algerian Jews' Citizenship*,
available at: <https://academic.oup.com/fh/article/35/2/243/6299901>

26 ⁴⁹ Roumani, p. 45.

27 ⁵⁰ Julius, p. 68; Roumani, p. 50; Wikipedia, "History of Algerian Jews: After WWII" available at:
https://en.wikipedia.org/wiki/History_of_the_Jews_in_Algeria#After_WWII; Wikipedia, "1934
Constantine riots," available at: https://en.wikipedia.org/wiki/1934_Constantine_riots.

28 ⁵¹ Johannes Heuman, *The silent disappearance of Jews from Algeria*, available at
<https://www.tandfonline.com/doi/full/10.1080/14725886.2022.2027211>; Roumani, pp. 20, 53.

1 they relinquish their Iraqi citizenship and forfeit their property to the state.

2 Therefore, the bombings could not have put pressure on the Iraqi government
3 removing the emigration ban because it preceded the bombings.⁵²

4 b. Responsibility for the bombings is hotly contested. While two Zionist activists
5 were convicted of the bombings, the sole evidence used to convict them was a
6 confession from one of the activists that was extracted under torture.⁵³

7 c. The majority of the bombings also occurred after 125,000 Iraqi Jews already
8 left (and only 5,000 Iraqi Jews remained). Therefore, they could not have been
9 the motivating factor for Iraqi Jews to leave Iraq.⁵⁴

10 d. Bad Empanada also ignores the severe prevalence of antisemitism in Iraq
11 before the bombing campaign began in April 1950. Beginning in the 1930s, the
12 situation for Iraqi Jews deteriorated because of the ongoing conflict in the
13 Palestinian Mandate and the introduction of Nazi propaganda into the Arab
14 world – which led to the following events.

15 i. In 1934, Jews were fired from positions in the Iraqi Ministries of
16 Economics and Communications. Additionally, quotas were imposed
17 on Jews to limit their numbers in civil service positions, secondary
18 schools and colleges.⁵⁵

19 ii. Beginning in 1936, physical attacks on Baghdadi Jews became
20 increasingly frequent.⁵⁶

21 iii. In 1938, Iraq made “Zionist activity” a crime. The testimony of two
22 Muslims was sufficient to convict. This resulted in arbitrary and
23 extortionary enforcement of the law against Iraq’s most prominent Jews

24 ⁵² Wikipedia, “History of Jews in Iraq: Modern Iraq,”
25 https://en.wikipedia.org/wiki/History_of_the_Jews_in_Iraq#Modern_Iraq; Wikipedia, “1950-
1951 Baghdad bombings,” available at:

26 https://en.wikipedia.org/wiki/1950%E2%80%931951_Baghdad_bombings

27 ⁵³ Moshe Gat, *The Jewish Exodus from Iraq, 1948-1951* (“Gat”), pp. 173, 178-180, 184-185 (PDF
Version).

28 ⁵⁴ *Id.*

⁵⁵ Roumani, p. 49.

⁵⁶ *Id.*

- like Shafiq Ades – who was hanged based on baseless charges of sending military equipment to Jews in the Palestine Mandate.⁵⁷
- iv. On April 1, 1941, the pro-Nazi fascist politician, Rashid Ali al-Quilani, led a successful coup that was encouraged by the Palestinian leader and Nazi propagandist, The Grand Mufti Hajj Amin al-Husseini. Despite the coup being short-lived, it was extremely successful in spreading Nazi ideology and directly led to the *Farhud* in June 1941 – a pogrom that resulted in more than 180 Jews killed, looting of Jewish businesses and destruction of Jewish homes. Due to the *Farhud* being an outgrowth of Nazi ideology, it is considered a part of the Holocaust.⁵⁸
- v. Prior to partition in November 1947, Iraqi Jews were being lynched, their homes ransacked, they were forced to pay extortion money and ethnically cleansed from Falluja.⁵⁹
- vi. After partition, Iraqi Jews were stripped of due process, prohibited from using banks, trains, the post office, telegraphs, securing import and export licenses and all Jewish workers in the government were

⁵⁷ Roumani, p. 52; Gat, pp. 27-28.

⁵⁸ Wikipedia, “1941 Iraqi coup d’etat,” available at:

https://en.wikipedia.org/wiki/1941_Iraqi_coup_d%27%C3%A9tat; Wikipedia, “Rashid Ali al-Gaylani,” available at: https://en.wikipedia.org/wiki/Rashid_Ali_al-Gaylani; World War Two, *The Nazi-Islam Alliance? – Amin al-Husseini – WW2 Biography Special* (Dec. 21, 2021), available at: <https://youtu.be/K07j-wuL8sw?si=en3seNLjS0JRmxHj>; The World History Channel, *Why Did The Grand Mufti Of Palestine Collaborate With Nazi Germany?* (Jan. 30, 2025), available at: <https://youtu.be/aVeXPfY7shI?si=ZT4GYoa27xKF6-kG>; Casual Historian, *How the Zionists responded to World War Two and the Holocaust* (Feb. 8, 2025), available at: <https://youtu.be/w6NrUiUhYiA?si=EswHI27G-9MW8OH4>; Casual Historian, *The Palestine Mandate: The Origins of the Israeli-Palestinian Conflict (Supercut)* (Dec. 28, 2023), available at: <https://youtu.be/vUuR-3tw9p8?si=EzAVrpG5IZHUKa8Y>; United States Holocaust Memorial Museum, Holocaust Encyclopedia, “Hajj Amin al-Husayni: Wartime Propagandist,” available at: <https://encyclopedia.ushmm.org/content/en/article/hajj-amin-al-husayni-wartime-propagandist?parent=en%2F11094>; United States Holocaust Memorial Museum, Holocaust Encyclopedia, “Hajj Amin Al-Husayni: Arab nationalist and Muslim Leader,” available at: <https://encyclopedia.ushmm.org/content/en/article/hajj-amin-al-husayni-arab-nationalist-and-muslim-leader?parent=en%2F11104>; Wikipedia, “Amin al-Husseini,” available at: https://en.wikipedia.org/wiki/Amin_al-Husseini; Gat, pp. 10-11; Wikipedia, “Farhud,” available at: <https://en.wikipedia.org/wiki/Farhud>.

⁵⁹ Wikipedia, “History of Jews in Iraq: Modern Iraq,” https://en.wikipedia.org/wiki/History_of_the_Jews_in_Iraq#Modern_Iraq;

1 fired.⁶⁰

2 vii. In 1950, members of the anti-Jewish Istiqlal party attacked locations
3 where Jewish goods were sold.⁶¹

4 e. Bad Empanada also misrepresents the condition of Iraqi Jews after the
5 bombing campaign. The few Iraqi Jews that remained after 1951 were treated
6 as a fifth column and made scapegoats for Arab military defeats against Israel.
7 For example, after the Six Day War in 1967, nine Iraqi Jews were hanged in
8 Baghdad and one in Basra on false charges of being Israeli spies and convicted
9 by a three-man Ba'athist tribunal.⁶²

10 f. Bad Empanada also misrepresents the motivation for the ban on Iraqi Jews
11 emigrating to Israel and Iraq rescinding the ban.

12 i. The ban was imposed shortly after partition in November 1947. The
13 reason for the ban was Iraq's concern that the population transfer would
14 only strengthen Israel (*i.e.*, the same reason Morocco prohibited Jews
15 emigrating to Israel).⁶³

16 ii. In early 1949, British officials learned that Iraqi Prime Minister Nuri
17 al-Said intended to expel the Jews to solve Iraq's "Jewish Problem."
18 British officials negotiated a population exchange of 100,000 Iraqi
19 Jews for an equivalent number of Palestinian refugees. For the Iraqi
20 Jews remaining after 1951, al-Said threatened to forcibly expel them
21 across the border or imprison them in concentration camps.⁶⁴

22 65. Samsen made the Fourth Defamatory Statement with knowledge of falsity or
23 reckless disregard for the truth because, amongst other things: (1) he knew that Bad Empanada –

24 ⁶⁰ *Id.*

⁶¹ Gat, pp. 192-193.

25 ⁶² Foreign Relations of the United States, 1969-1976, Volume E-4, Documents on Iran and Iraq,
26 1969-1972, Document 251. Accessed: <https://history.state.gov/historicaldocuments/frus1969-76ve04/d251#:~:text=On%20January%2027%2C%201969%2C%20fourteen,in%20Baghdad%20as%20Israeli%20spies>; Gourji C. Bekhor, *Fascinating Live and Sensational Death*, pp. 183-209.

27 ⁶³ Gat, pp. 26, 127-128; Wikipedia, "History of Jews in Iraq: Modern Iraq,"
https://en.wikipedia.org/wiki/History_of_the_Jews_in_Iraq#Modern_Iraq;

28 ⁶⁴ Gat, pp. 35-36, 127-128; Wikipedia, "History of Jews in Iraq: Modern Iraq,"
https://en.wikipedia.org/wiki/History_of_the_Jews_in_Iraq#Modern_Iraq;

1 like Samsen himself – was an unreliable source of information with an extreme bias against
2 Ethan, Israel and Israelis; (2) the Bad Empanada Video did not identify a single statement by
3 Ethan that supported his assertion of Nakba denial; and (3) Samsen was more concerned with
4 promulgating his false narrative about denying atrocities made against Arab Jews to advance his
5 genocidal rhetoric.

6 **The Sixth Defamatory Statement**

7 66. The Sixth Defamatory Statement falsely asserts that Ethan labeled Rasheed Al-
8 Hadad (“Al-Hadad”) as a terrorist with “zero credible evidence.” *The Nuke* shows various social
9 media posts of Al-Hadad admitting to being a Houthi terrorist, expressing support for the Houthis
10 and echoing their genocidal rhetoric. *The Nuke* also shows clips of Al-Hadad discussing visiting
11 the *Galaxy Leader* – i.e., the ship hijacked by the Houthis – and interacting with the hostage taken
12 crew. *The Nuke* at 47:43-49:05.

13 67. Despite claiming to have seen *The Nuke*, Samsen failed to disclose – let alone
14 explain – why the social media posts and interview cited by Ethan in *The Nuke* failed to support
15 Ethan’s claim that Al-Hadad was a member of the Houthis. Samsen failed to do so because he
16 knew he could not do so.

17 **The Retraction Demand and Samsen’s Response**

18 68. On March 31, 2025, Ethan sent Samsen a demand for retraction out of an
19 abundance of caution (the “Retraction Demand”). The Retraction Demand was sent to the email
20 address Samsen provided on his YouTube page: Noah@SparkMedia.la. A physical copy was sent
21 to Spark Media, Inc. The Retraction Demand was 16 pages long. It explained in exacting detail
22 why the Defamatory Statements were false and supported the assertions with numerous citations.

23 69. Samsen refused to comply with the Retraction Demand. Furthermore, he began to
24 flaunt his refusal to comply with the Retraction Demand and continued to attack Ethan – along
25 with Hila – as detailed below.

- 26 a. On May 15, 2025, Samsen released a video stating he would not comply with
27 the Retraction Demand (even though the deadline to comply had long passed)
28

1 and called it a “joke.”⁶⁵

- 2 b. Samsen would go on to make a number of videos and social media posts that
3 doubled down on his claims against Ethan, attack Hila as a war criminal and
4 attack their Arab employees as race traitors.⁶⁶
5 c. On December 14, 2025, Samsen was interviewed where he continued to taunt
6 Ethan into suing him.⁶⁷

7 **FIRST CAUSE OF ACTION**

8 **Defamation**

9 70. Ethan repeats and realleges each of the foregoing paragraphs as if set forth fully
10 herein.

11 71. Defendants published false and defamatory statements about Ethan to a worldwide
12 Internet audience by posting the Defamatory Video on Samsen’s YouTube channel on March 11,
13 2025.

14 72. The Defamatory Video contained numerous defamatory statements about Ethan
15 that are set forth below.

- 16 a. The First Defamatory Statement is the title of the Defamatory Video – *i.e.*,
17 *These YouTubers Backed a Genocide* – and the thumbnail of Defamatory
18 Video which is depicted below.
19
20

21 ⁶⁵ Noah Samsen, *Ethan Klein Lawsuit Response* (May 15, 2025), available at:
22 <https://youtu.be/YWSHZouzaIM?si=s1AM6CIEKbNrIhAC>

23 ⁶⁶ Noah Samsen, *How to Girlboss a Genocide* (June 20, 2025), available at:
24 <https://youtu.be/FdO05o1S79k?si=zsCqwcX8OVOMOD6W>; August 13, 2025 post by Samsen
25 on X, available at: <https://x.com/noahsamsen/status/1955763595427684766>; August 14, 2025
26 post by Samsen on X available at: <https://x.com/noahsamsen/status/1956104001084383664>;
27 August 25, 2025 post by Samsen on X available at:
28 <https://x.com/noahsamsen/status/1960024613406360050>; September 11, 2025 post by Samsen
on X available at: <https://x.com/noahsamsen/status/1966290594965443016>; September 11,
2025 post by Samsen on X available at:
<https://x.com/noahsamsen/status/1966255915893760427>; September 15, 2025 post by Samsen
on X available at: <https://x.com/noahsamsen/status/1966036989859479652>; December 10, 2025
post by Samsen on X available at: <https://x.com/noahsamsen/status/1998899204954243515>

⁶⁷ Chris Kunzler, *Noah Samsen Breaks Silence on Ethan Klein Lawsuit, Talks About Liberal
Zionism & More (NPH! Ep. 3)* (December 14, 2025), available at
<https://www.youtube.com/watch?v=gbrV7AV65zg>



- b. The Second Defamatory Statement is: “Ethan spreads atrocity propaganda. He shares the Hamas mass rapes hoax – the same hoax that used by the Western media, the US government and the Israeli government to justify genocide.” Defamatory Video at 43:15-43:32.
- c. The Third Defamatory Statement is “Ethan spreads overt misinformation. Just straight up lies about Hezbollah and Ansar Allah (or the Houthis) in order to delegitimize their struggle against Israel’s genocide. He cites baseless claims from Saudi state propaganda outlets to attack the Houthis. He also cites a documentary about Ansar Allah, which he uses as proof of the claim that they brought back slavery when the documentary wasn’t even about the Houthis; it was about the Yemeni government before the Houthi takeover.” Defamatory Video at 43:56-44:23.
- d. The Fourth Defamatory Statement is: “He [*i.e.*, Ethan] spreads long debunked Nakba denialist talking points. Talking points that have been used for decades to legitimize Israeli colonization of Palestine.” Defamatory Video at 44:22-44:29.
- e. The Fifth Defamatory Statement is “Ethan cites sources that contradict his own

claims directly, such as the UN report he claims proves the Hamas mass rapes allegation – which the report itself denies.” Defamatory Video at 44:30-44:41.

- f. The Sixth Defamatory Statement is: “He [*i.e.*, Ethan] spends 20 minutes in the video smearing a 19-year-old survivor of the US-backed Saudi genocide in Yemen as a terrorist with zero credible evidence.” Defamatory Video 44:41-44:50.

73. Samsen’s defamatory statements were intended and did falsely convey the following:

- a. The First Defamatory Statement falsely conveyed that Ethan materially and/or morally supported Israel’s genocide of the Palestinian people in Gaza.
- b. The Second and Fifth Defamatory Statements falsely conveyed that Ethan lied about Hamas engaging in sexual violence and misrepresented the UN Report to justify Israel’s actions in Gaza.
- c. The Third Defamatory Statement falsely conveys that Ethan made false factual statements about Hezbollah and the Houthis, including misrepresenting the contents of his source material, to justify Israel’s actions against Palestinians.
- d. The Fourth Defamatory Statement falsely conveys that Ethan denied The Nakba to justify Israel’s existence.
- e. The Sixth Defamatory Statement falsely conveys that Ethan branded Al-Haddad a terrorist with no factual support to advance a pro-Israel narrative.

74. Samsen’s statements, which refer to Ethan by name or likeness, are reasonably understood to be statements of fact about Ethan and were understood by people who read them to be statements of fact about Ethan.

75. Samsen’s statements are false as discussed below:

- a. The First Defamatory Statement is false because Ethan has not morally or materially supported Israel’s genocide of the Palestinian people. To the contrary, Ethan has condemned Israel’s actions as a genocide and apartheid both before and after October 7th.

- 1 b. The Second and Fifth Defamatory Statements are false because Ethan
2 accurately represented the contents of the UN Report that Hamas engaged in
3 numerous acts of sexual violence on October 7th – nor does Ethan use this fact
4 to justify Israel’s genocide of the Palestinian people.
- 5 c. The Third Defamatory Statement is false because Ethan did not spread false
6 statements about Hezbollah or the Houthis – let alone to legitimize Israel’s
7 genocide of the Palestinian people.
- 8 d. The Fourth Defamatory Statement is false because Ethan did not deny The
9 Nakba or engage in Nakba denialist talking points to legitimize Israel’s
10 existence.
- 11 e. The Sixth Defamatory Statement is false because Ethan provided substantial
12 evidence of Al-Haddad’s connection and support for the Houthis.

13 76. Samsen’s statements are defamatory and libelous *per se*. Their defamatory
14 meaning is apparent on their face, without the necessity of explanatory matter because they
15 accuse Ethan of materially or morally supporting Israel’s genocide of the Palestinian people by
16 spreading factually and demonstrably false statements. Samsen’s statements have exposed Ethan
17 to hatred and contempt and have injured him in his occupation as an online content creator and
18 owner of a streetwear company. Samsen’s statements were calculated to – and did in fact –
19 provoke outrage and cause Ethan reputational and financial damage to Defendants’ benefit (both
20 financially and reputationally).

21 77. Defendants have no applicable privilege or legal authorization to publish these
22 false and defamatory statements or, if they did, they abused it.

23 78. As set forth above in detail and summarized below, Defendants published the
24 defamatory statements with actual malice:

- 25 a. As to the First Defamatory Statement, it was made with actual malice because,
26 amongst other things, Defendants: (1) knew that Ethan did not support Israel’s
27 genocide by having reviewed *The Nuke*; (2) engaged in identical behavior by
28 citing the Annas Video and the Turkey Tom Video to claim they support

1 Israel's genocide – despite Annas and Turkey Tom expressly stating the
2 opposite; (3) admitted to including Ethan in the thumbnail because it would
3 garner more views for the Defamatory Video; (4) admitted that targeting Ethan
4 was “algorithmically” viable; (5) expressly disregarding the Retraction
5 Demand which provided evidence demonstrating falsity; and (6) doubling
6 down on the First Defamatory Statement by repeating it.

7 b. As to the Second and Fifth Defamatory Statements, they were made with
8 actual malice because, amongst other things, Defendants: (1) knew that the UN
9 Report expressly found that numerous acts of sexual violence occurred to
10 Israelis on October 7th and they expressly misrepresented the UN Report's
11 findings; (2) they misrepresented the contents of the information cited in the
12 Defamatory Video immediately after the Second Defamatory Statement –
13 emphasizing they were not interested in the truth but in advancing a false
14 narrative; (3) they wanted to portray Hamas as a “heroic resistance” and
15 acknowledging the truth would contradict that narrative; (4) expressly
16 disregarding the Retraction Demand which provided evidence of falsity; and
17 (5) doubling down on the Second and Fifth Defamatory Statements.

18 c. As to the Third Defamatory Statement, it was made with actual malice
19 because, amongst other things, Defendants: (1) knew that the *Asharq Al-Awsat*
20 Article was supported by numerous sources; (2) knew that the *Al-Jazeera*
21 Documentary concerned Yemen's overall culture of slavery and that it was
22 released after the Houthis took control of large parts of Yemen; (3) knew that
23 the facts Ethan pointed out about Hezbollah and the Houthis were true – which
24 is why he did not address them; (4) they wanted to portray Hezbollah and the
25 Houthis as a “heroic resistance” and acknowledging the truth would contradict
26 that narrative; (5) expressly disregarding the Retraction Demand which
27 provided evidence of falsity; and (6) doubling down on the Third Defamatory
28 Statement.

- 1 d. As to the Fourth Defamatory Statement, it was made with actual malice
2 because, amongst other things, Defendants: (1) knew that Bad Empanada was
3 an unreliable source of information and highly biased against Ethan, Israel and
4 Israelis; (2) knew the Bad Empanada Video failed to identify any statement
5 made by Ethan that denied the Nakba; (3) knew that Ethan did not say
6 anything that denied the Nakba – even though Samsen watched *The Nuke*; (4)
7 failed to identify a single statement by Ethan in the Defamatory Video where
8 he denied the Nakba; (5) expressly disregarded the Retraction Demand which
9 provided extensive evidence of falsity; and (6) doubling down the Fourth
10 Defamatory Statement.
- 11 e. As to the Sixth Defamatory Statement, it was made with actual malice because,
12 amongst other things, Defendants: (1) knew of the various social media posts
13 by Al-Hadad admitting he was a Houthi and expressing support for the Houthis
14 when Defendants saw *The Nuke*; (2) failed to explain why Al-Hadad’s social
15 media posts did not show he was a Houthi or that he supported their cause
16 because Samsen knew they showed the opposite; (3) expressly disregarded the
17 Retraction Demand which provided evidence of falsity; and (4) doubling down
18 on the Sixth Defamatory Statement.

19 79. Samsen made these false and defamatory statements intentionally, willfully,
20 maliciously, and in conscious disregard for Ethan’s rights and reputation and of the truth.

21 80. Samsen’s defamatory falsehoods have been repeated and republished by numerous
22 people, which was reasonably foreseeable to – and specifically intended and expected by –
23 Defendants.

24 81. As a direct and foreseeable result of Samsen’s false and defamatory accusations,
25 Ethan has suffered financial and reputational harm.

26 82. As a result of Samsen’s false and defamatory accusations, Ethan’s relationships
27 with members of his community, his current and prospective business partners, and other
28 individuals with whom Ethan has known and interacted have been irreparably damaged.

1 83. As a result of Samsen's false and defamatory accusations, threatening statements
2 have been directed at Ethan and his family, causing Ethan emotional distress.

3 84. As a result of Samsen's false and defamatory accusations, Ethan has been forced
4 to make an expenditure of money to remedy the defamation, including an expenditure of
5 attorneys' fees.

6 85. Ethan is entitled to exemplary damages because Defendants' publication of these
7 defamatory statements was accompanied by malice, fraud and oppression and a conscious desire
8 to cause injury. Defendants acted with reckless and willful indifference to Ethan's rights.

9 86. Ethan is entitled to exemplary damages because Defendants published these false
10 and defamatory statements about Ethan with actual malice.

11 87. In view of the foregoing, Ethan is entitled to general, special, and exemplary
12 damages in an amount to be determined at trial.

13 **PRAYER FOR RELIEF**

14 88. WHEREFORE, Ethan prays for judgment against Defendants Noah Samsen and
15 Samsen Creative LLC as follows:

- 16 a. Awarding Ethan general and special damages;
17 b. Awarding Ethan punitive and exemplary damages;
18 c. Awarding Ethan all expenses and costs, including attorneys' fees; and
19 d. Such other and further relief as the Court deems appropriate.

20 **DEMAND FOR JURY TRIAL**

21 Plaintiff Ethan Klein demands a jury trial of all triable issues.

22
23 Dated: March 9, 2026

HEAH BAR-NISSIM LLP

24
25 By /s/Rom Bar-Nissim
26 Rom Bar-Nissim
27 Attorneys for Plaintiff Ethan Klein
28